

-----x FILE NO: 154703
IN THE MATTER OF:
LINDA RUSSELL, DOCKET NOS.: V-07641-18/21S
Petitioner, V-07641-18/21AA

-----X	
TARA KATELYN WALSH,	DOCKET NOS.: V-07641-18
Petitioner,	0-12635-19
	0-12635-19/21K
- vs. -	V-05280-21/21A
	V-07641-18/21Z
STEPHEN GRANT RUSSELL,	V-07641-18/21V

BEFORE: HONORABLE MICHELLE I. SCHAUER, Part 17

DONNA MARIE GENOVESE, ESQ.
Attorney for the Child

Digital Recorded Proceeding, Valeri Wilson, Transcriber

1 (3:38:51 p.m.)

2 UNIDENTIFIED VOICE: We're on the record, Judge.

3 COURT OFFICER: This is numbers 3 through 10 on
4 the calendar in matters of Walsh and Russell. Mr. Weddle,
5 your appearance.

6 MR. WEDDLE: Chris Weddle, Timko and Moses, 1
7 North Broadway, White Plains, appearing for Tara Walsh,
8 present in court standing to my right. Good afternoon,
9 Your Honor.

10 MR. DIFABIO: Good afternoon, Your Honor. Max
11 DiFabio for Linda Russell who's also present in court.

12 MS. GENOVESE: Donna Genovese, Goldschmidt and
13 Genovese, 81 Main Street, Suite 405, White Plains, New
14 York, 10601, for the child, Evelyn Grace Walsh. Good
15 afternoon.

16 COURT OFFICER: Ms. Walsh, raise your right hand.
17 Do you swear or affirm to tell the truth?

18 MS. WALSH: I do.

19 COURT OFFICER: State your name and address for
20 the record.

21 MS. WALSH: Tara Walsh, and my address is
22 confidential.

23 COURT OFFICER: Okay. Ms. Russell, raise your
24 right hand. Do you swear or affirm to tell the truth?

25 MS. RUSSELL: I do.

1 COURT OFFICER: State your name and address
2 unless it's confidential.

3 MS. RUSSELL: Linda Russell, 407 E. Mohoning
4 Street, Apartment 425, Punxsutawney, Pennsylvania, 15767.

5 COURT OFFICER: Thank you.

6 THE COURT: Thank you.

7 COURT OFFICER: Be seated.

8 THE COURT: Good afternoon. We are here today
9 with respect to the attorney for the child's Order to Show
10 Cause that is seeking to prohibit the respondent father
11 from posting, among other things, blogs and things on the
12 internet. I do see that there is an Affidavit of Service
13 in the file showing that Mr. Russell was filed -- was
14 served. Does anyone know why he is not here today?

15 MS. GENOVESE: No. Judge, two -- there are two
16 Order to Show Cause. One is for Mr. Walsh and -- I'm
17 sorry, Mr. Russell, and the other one is for Ms. Russell.
18 So there are two of them. I filed the Affidavit of Service
19 for both motions on October 22nd.

20 THE COURT: And I do see that. Are you
21 acknowledging service, Mr. DiFabio?

22 MR. DIFABIO: Yes, Judge. And I -- I'm not going
23 to -- I'm going to -- I'm not going to make the legal
24 arguments that I think the order's in effect. Not
25 withstanding that, we'll consent to the relief.

1 THE COURT: Okay. Anything you want to say, Mr.
2 Weddle?

3 MR. WEDDLE: No thank you, Your Honor.

4 THE COURT: And although this matter was
5 scheduled for 3:30, and it's only 3:41, Mr. Russell has not
6 appeared in court in quite some time. Normally I would
7 give a party a fair amount of time to appear, but I think
8 we'll proceed with the other issues that we have to
9 address. And then if he's still not here, I'll proceed
10 without him.

11 So we did have the issue that we discussed on the
12 last court date of Ms. Walsh's finances, and I did get
13 yesterday a financial disclosure affidavit with her tax
14 returns. And it appears to me that Ms. Walsh is -- does
15 not qualify for 18B counsel. So I don't know what you want
16 to do about that, Mr. Weddle.

17 MR. WEDDLE: Your Honor, the -- my understanding
18 of the statute is not -- the qualification is not based
19 merely on income, rather -- but rather on the ability to
20 procure legal representation. Over the course of the
21 various litigations that Mr. Russell has brought against
22 Ms. Walsh, she has -- she had retained private counsel in
23 the past. She has depleted her life savings in paying for
24 that counsel to the tune of over \$120,000.00. She simply
25 doesn't have resources. And based on her income which is

1 about 40-some-odd-thousand dollars a year, I don't know
2 where she's going to find a lawyer who's willing to
3 represent her at their hourly rate. Now the --

4 THE COURT: But she's -- but she gets 60 -- she
5 gets -- her income including child support is \$100,000.00 a
6 year.

7 MR. WEDDLE: Child support is not income, Your
8 Honor. That goes to the care -- I'm sorry. Respectfully
9 that's for the care of the child. That's not to pay
10 lawyers. Her regular income is that. She is involved in
11 three other litigations at the moment in which she is
12 representing herself because she cannot afford attorneys.

13 THE COURT: Well, I don't know what to say. Her
14 total income is 100,000. I understand what you're saying
15 about child support. But typically someone who makes
16 \$100,000.00 a year would be supporting their children with
17 that \$100,000.00, and that certainly would not qualify for
18 an 18B attorney.

19 MR. WEDDLE: I'm sorry --
20 (Counsel and Client confer)

21 MR. WEDDLE: Judge, I don't think she's going to
22 -- without dipping into the child support, I don't think --
23 I mean, if the case walked into my office, and I took a
24 look at -- this is a third of the file, I mean, I'd want a
25 10 or \$15,000.00 retainer up front. And she -- I don't

1 think that's a check that she can write.

2 I asked her if she could get help from her
3 family, and she said her family does not help her. She
4 does not receive any funds from them. So she's kind of on
5 her own here, Judge. And so if you do remove me from
6 representing her, she will likely have to proceed pro se in
7 this case.

8 THE COURT: At this point, Mr. Russell has not
9 appeared. He's in default. It doesn't seem like there's
10 really much of a case. And so let me just hold off on that
11 issue for the moment. Moving on to Mr. DiFabio and Ms.
12 Russell's application, I thought, Mr. DiFabio, you were
13 going to file a Grandparent Visitation Petition.

14 MR. DIFABIO: Your Honor, I apologize. I've been
15 involved with some things the last few weeks. I -- it
16 slipped my mind. I'm sorry. I will do it before the next
17 time. In any event, Judge, I spoke to Mr. Weddle about
18 getting some visitation for my client. She also spoke to
19 Mr. Weddle and the attorney for the child.

20 She's indicated to us that she's not looking for
21 a whole lot. She wants to proceed as if any grandmother
22 would. With respect to any prohibitions on her posting, we
23 consent to that. With respect to having contact with her
24 son while she's with the child, she agrees to be prohibited
25 from doing that. And any other restrictions that are

1 reasonable, she'll agree to.

2 She's already had the child a few times. And as
3 I said, Judge, the first time with the internet with my
4 client, I took that on the chin, and I sincerely believed
5 that he was permitted to do so. And if you recall it,
6 Judge, we went back and forth on transcripts that I thought
7 you had said so long as my client was present, she was
8 allowed to FaceTime Dad, et cetera. That's old news. But
9 she's seen the child. She's no danger to the child.

10 She wants some reasonable access to her
11 granddaughter like she has with her other grandchildren.
12 Because her son, in the Court's view, may be misbehaving or
13 not complying, she shouldn't be punished for that.

14 THE COURT: Mr. Weddle?

15 MR. WEDDLE: Oh, I'm sorry, Judge. I did not
16 hear you. Where do I start? We don't believe --

17 THE COURT: Before you start, say Mr. DiFabio did
18 say his client would agree to some restrictions --

19 MR. WEDDLE: Yes.

20 THE COURT: -- and so with that caveat that maybe
21 we could put some appropriate restrictions in place, you
22 could perhaps address his application.

23 MR. WEDDLE: Judge, a court order is only as good
24 as my ability and willingness to enforce it. A restriction
25 for example -- and it's -- really it's Mr. Russell that's

1 our concern, is that his actions in this matter have been
2 erratic, irrational. They have been unpredictable. They
3 have been frankly contrary to his own best interests, and
4 we are very concerned about Ms. Russell's ability to keep
5 Mr. Russell away from Evie until these issues can be
6 resolved.

7 Also you -- the Court will remember after the
8 last visit with Ms. Russell, Your Honor received a
9 disturbing letter with respect to not only my client but my
10 client's family. That's not encouraging. That doesn't
11 foster a ground for mutual understanding, respect and
12 cooperation. And lastly, Judge, of course, the matter's
13 not properly before the Court, and second of all my client
14 is a parent. She has some, I would say, weighted right to
15 determine with whom her child associates.

16 THE COURT: Ms. Genovese?

17 MS. GENOVESE: It -- I would -- possibly it would
18 -- might make sense -- sorry with the mask -- to start out
19 with something that's like a virtual visit. So therefore
20 there would be some types of control and confinement to it,
21 but there can be some type of a visit between the
22 grandmother and the child.

23 I'm assuming that the Court is going to issue a
24 written order with respect to the motion so that there's
25 something in writing so that it's clear. Because there are

1 two branches of the relief. One of them is that Respondent
2 and also Ms. Russell or any other persons, entities and or
3 agents acting on their behalf are restrained from recording
4 the visits between Evie and Ms. Russell in that they're not
5 plastered all over the internet.

6 Unfortunately, I have looked as recently as this
7 morning, and this Chappaqua Poison website continues. And
8 in fact it addresses the (inaudible) the gag order of the
9 Court. So I have concern that things are just continuing
10 as is rather than getting better. This posting is as of
11 November 4th, 2021, for the Chappaqua Poison website.

12 It's my understanding that Mr. Russell is
13 claiming that he doesn't own the website and that it's
14 somehow been sold, but it continues. So I do have concerns
15 that this is just going to continue and perpetuate itself.
16 But possibly we could start out with something slower like
17 at least some type of a virtual visit so that there is
18 contact between the grandmother.

19 MR. DIFABIO: Your Honor, may I respond?

20 MS. GENOVESE: Yeah.

21 THE COURT: Yes.

22 MR. DIFABIO: I'd like to focus on my client,
23 Linda Russell, not Mr. Russell. Ms. Russell has nothing
24 whatsoever to do with any posting, any Chappaqua Poison or
25 anything of the sort. With respect to the letter that Mr.

1 Weddle referenced, that's -- we're going over old ground
2 again. I think we sufficiently explained that. And I
3 think Your Honor has already formed an opinion with respect
4 to that letter.

5 Finally, Judge, I'll say this. My client -- it's
6 my understanding that prior to us appearing before you, my
7 client was FaceTiming with Evie, occasionally. Tara was
8 permitting that. So that ship's sailed on the virtual.
9 She's already had in-person visits other than, other than,
10 my client mistakenly, mistakenly having video communication
11 with Evie. There were no issues. There were no problems.

12 She's capable. She's a nurse, a retired nurse.
13 She's raised children. You can see her demeanor. She's
14 not a monster. She huffs it all the way up here from
15 Pennsylvania to do this. She's a responsible woman.
16 She'll be bound by every restriction -- by any restriction
17 you impose, Judge. And I don't think we need to go
18 backwards in this case. She's already seen the kid and
19 already done the virtuals. Thank you.

20 THE COURT: Mr. Weddle?

21 MR. WEDDLE: Because of what has transpired thus
22 far, we are not confident of Ms. Russell's ability to keep
23 her son away from Evie until the Court makes a decision.
24 There was an order before. Mr. DiFabio argues that it was
25 a misunderstanding with respect to the Court's direction.

1 I am not inclined to agree. And that's concerning to --

2 MR. DIFABIO: You're not going to take my word
3 for that? It was my misunderstanding, Chris.

4 MR. WEDDLE: It was -- but it was in writing is
5 the problem (inaudible). It was in writing.

6 THE COURT: I think --

7 MR. DIFABIO: I'm going to take exception to
8 that, Judge. I read the transcript. In good faith, I
9 brought it to the Court's attention. I brought it to
10 Counsel's attention, and I showed passages in the
11 transcript where I believe, Your Honor, perhaps
12 incorrectly, I believe Your Honor permitted FaceTime access
13 with my client, Linda, and Mr. Russell so long as my client
14 was present.

15 MR. WEDDLE: (Inaudible) --

16 MR. DIFABIO: Obviously --

17 THE COURT: Things --

18 MR. DIFABIO: -- that was a mistake, and I've
19 admitted to that.

20 THE COURT: Things involving the visits between
21 your client and Evie wound up online. That's a fact. I am
22 concerned that your client is controlled or bullied or
23 fearful of Mr. Russell, and --

24 MS. RUSSELL: I'm not -- I'm not (inaudible).

25 THE COURT: -- that she can't control him. And

1 so if I were to come up with a solution for this access, I
2 would have her have supervised visits. And that's not
3 because I think she's not capable of being safe around
4 Evie. I think she certainly is. It's that I think she can
5 be manipulated by her son to do whatever it is he wants to
6 do. And so I need some assurance that if there's a visit
7 that nobody else is there, that she's not video recording
8 it. That's what I would want.

9 MR. DIFABIO: Your Honor, if I may. An order
10 would solve that issue, and I'll tell you why. Because
11 it's very simple to do a supervised visit and follow the
12 rules when someone's supervising it. It's when you're not
13 being supervised, not being supervised, that it matters.

14 And I suggest, Judge, being she's already seen
15 the child, give her an opportunity to see the child
16 unsupervised. We'll know immediately if something's
17 posted. And by the way, Judge, whatever's being posted,
18 and I disagree that it's a fact that there was stuff shared
19 from that visit. I think it was old stuff. Give her that
20 opportunity --

21 THE COURT: Whatever it is, Mr. DiFabio, whatever
22 it is, it was inappropriate, improper. If Mr. Weddle and
23 --

24 MR. DIFABIO: But it wasn't Linda.

25 THE COURT: -- his client are willing to agree

1 for your client to have some unsupervised visits with Evie,
2 I would say this right now on the record, if there is any
3 violation and any sliver of anything that occurred at that
4 visit winds up somewhere online, I will have a trial, and I
5 will find it is not in Evie's best interest to have any
6 contact with this grandmother.

7 MR. DIFABIO: (Inaudible) --

8 THE COURT: And I think Ms. Genovese would agree.
9 What --

10 MR. DIFABIO: I would agree too.

11 THE COURT: -- is out there online is --

12 MS. RUSSELL: So would I.

13 THE COURT: -- horrific, inappropriate and very
14 damaging to this child.

15 MR. DIFABIO: Judge, we both agree with you, that
16 is my client and myself, both agree with that. And we
17 would like the opportunity to show you that this can be
18 done without any problems of that sort. In fact, I would
19 tell my client not to even tell anyone she's visiting with
20 the child.

21 THE COURT: That would be wise.

22 MR. DIFABIO: Sometimes I am.

23 THE COURT: Would you like to go see if you could
24 work out some sort of schedule?

25 MR. DIFABIO: Judge, again, we're going to make

1 this as flexible for Ms. Walsh as possible. We don't even
2 need a schedule. We're just asking for maybe once a month.

3 MS. RUSSELL: Or less.

4 MR. DIFABIO: Not even that. And Linda would
5 call Tara, ideally, give her reasonable notice, and she'd
6 come up. The child's in nursery school during the day. So
7 Linda effectively would have a few hours with her after
8 school and maybe a few hours during the day on the weekend,
9 and then she'd go away. Something really simple, not
10 taxing on anyone.

11 She just wants to pop in, see her granddaughter,
12 show her some love and then go on with her life because
13 she's living her life. She's going to be traveling. She's
14 doing things. So she doesn't need to be burdened with a
15 heavy schedule either.

16 THE COURT: Mr. Weddle, do you need some time to
17 talk to your client?

18 MR. WEDDLE: No, Judge. We were speaking before
19 the case was called and with Mr. DiFabio. My client is not
20 reassured that Mr. Russell won't manage to insert himself
21 into any arrangement that the Court comes up with. I mean,
22 Mr. Russell hasn't followed a court order so far. Why
23 would we expect him to now?

24 MR. DIFABIO: Your Honor, Mr. Russell has not
25 traveled back from California during any of the visits my

1 client had with the child. That's a fact. He hasn't been
2 in the state in, I would say, don't hold this -- don't hold
3 me to -- two years minimally. The last time he was here, I
4 think we went to court. There's no risk of Mr. Russell
5 coming here. And Ms. Russell will have a duty to report.

6 THE COURT: Well, I can say this, Mr. Weddle, you
7 heard what I just said. If there is a visit and one sliver
8 of what happens at that visit gets posted online, that's
9 the end. There's no -- there's just no more chances
10 because it would be very easy -- I don't think anyone could
11 make an argument that's what being -- what's being posted
12 on these blogs and these websites is anything other than
13 contrary to the best interest of this child.

14 MR. WEDDLE: And Your Honor -- respectfully, Your
15 Honor, what if there's an indication that Mr. Russell has
16 had contact with Evie during one of those visits?

17 MR. DIFABIO: And we admit that, Your Honor. We
18 admit that.

19 THE COURT: Then that's a violation, and the
20 visits end. And then maybe it's a supervised visit. And
21 -- I mean, there's no -- there's not -- it's not going to
22 be easy to go -- to move forward if there's another
23 violation here. It's just not.

24 UNIDENTIFIED VOICE: Judge, (inaudible) --

25 THE COURT: And I don't want -- I don't want to

1 sound like I'm giving endless opportunities. I don't think
2 I am. But if Ms. Russell can assure everyone that she is
3 not -- and like you said, Mr. DiFabio, perhaps she doesn't
4 even tell her son, that she's not going to have him be
5 involved in these visits, that she's not going to tell him
6 anything that's going on, that's fine.

7 But as I said, if there's one tiny bit of
8 something that winds up online that can be traced back to
9 her visit, it's over. It is over. And Mr. Weddle can
10 throw my words up at me if we have to come back to court on
11 a violation.

12 MR. DIFABIO: And Judge, the other consideration
13 with respect to supervision, while Mr. Russell may have
14 means, my client does not so that would be an extra expense
15 added to her -- and it would be -- and if we were to keep
16 this between us, she couldn't go to him for money obviously
17 for this reason, right? So I want to make this as simple
18 as possible. I'm not trying to belabor this point at all.

19 MS. GENOVESE: I would say if the Court's
20 considering the access to definitely put on like a
21 geographical restriction, something clear -- that it is
22 very clear that there can't be any recordings, and there
23 would be no sharing of information regarding the visits so
24 that the child is protected because these websites do still
25 continue --

1 THE COURT: Right.

2 MS. GENOVESE: -- as recently as I said as last
3 night, I saw more stuff on the websites --

4 MR. DIFABIO: We understand, Judge.

5 MS. GENOVESE: -- you know.

6 THE COURT: (Inaudible) so if you want to draft
7 up an interim order that puts all the parameters of the
8 visits, the geographical restrictions, the no recording, no
9 electronic devices, you want to put down whatever you can
10 agree to for that and leave it open as to, you know,
11 whatever, one day per or one day every six weeks or one day
12 every two months, however you want to do it as arranged
13 between the parties, then you can try to do that.

14 MR. DIFABIO: We're happy with any geographical
15 restriction, Your Honor. We understand the posting, and to
16 the extent she can, my client will guard her privacy.

17 MR. WEDDLE: Your Honor --

18 THE COURT: Mr. Weddle?

19 MR. WEDDLE: -- can I ask a question?

20 THE COURT: Yes.

21 MR. WEDDLE: If the Court's mind is made up on
22 this, I would ask if Ms. Genovese could see Evie promptly
23 after that first visit. Because we're --

24 THE COURT: Okay.

25 MR. WEDDLE: -- not sure that Evie's going to be

1 comfortable with this.

2 MS. GENOVESE: That's fine.

3 THE COURT: Okay. So --

4 MS. GENOVESE: The only issue is I'm away from
5 Tuesday to Friday next week. But then I'm back. I have a
6 seminar that I'm going to in --

7 THE COURT: Okay.

8 MS. GENOVESE: -- Chicago.

9 THE COURT: So why don't you go out and try to
10 draft something and then we'll just continue in a few
11 minutes. Is that alright? I'm going to ask, the parties
12 to step out, lawyers to stay on for a second.

13 COURT OFFICER: Okay. Parties can step out.

14 THE COURT: Off the record.

15 (Off the record, 4:01:19 p.m.)

16 (Whereupon, a brief recess was taken.)

17 (On the record, 4:29:58 p.m.)

18 COURT OFFICER: All parties and counsel remain
19 the same.

20 THE COURT: Thank you. Yes. So I think we
21 addressed a number of issues in our brief attorneys'
22 conference. The order with respect to Ms. Russell's
23 visitation is going to be worked out outside of court so
24 Counsel can figure out what sort of language they want to
25 put in to ensure the safety of the child, and you can

1 submit that order on consent.

2 As far as -- and I did also realize that when in
3 the very beginning of this case I vacated the Order of
4 Custody which was issued on default against Mr. Russell,
5 that I probably should have said that the interim Order of
6 Custody giving Ms. Walsh sole legal and physical custody
7 was reinstated, but I think at this point, Mr. Weddle,
8 maybe you can just submit a new order?

9 MR. WEDDLE: Yes, Your Honor.

10 THE COURT: So you can -- and that'll be until
11 further order of the Court.

12 MR. WEDDLE: Yes, Your Honor.

13 THE COURT: And Mr. Genovese, you can submit the
14 order with respect to your Orders to Show Cause. At this
15 point, it's 4:30. It's clear that Mr. Russell's not
16 appearing so both of those Orders to Show Cause are
17 granted, and you may submit the orders on notice.

18 MS. GENOVESE: Thank you.

19 THE COURT: I am going to hold off on relieving
20 Mr. Weddle as 18B counsel. I will order a forensic
21 evaluation. But given that Mr. Russell has failed to
22 appear in this proceeding for quite some time, I am also
23 going to schedule an inquest January 5th at 9:30. That's
24 in person. I think a half day would be enough for an
25 inquest, correct?

1 MR. WEDDLE: Yes, I believe so, Your Honor, more
2 than enough time.

3 THE COURT: Okay. Is there anything else that we
4 need to address at --

5 MR. DIFABIO: No, Your Honor.

6 THE COURT: -- this point?

7 MR. WEDDLE: No, Your Honor.

8 MS. GENOVESE: No, Your Honor, except for the
9 issue of my payment which I will advise the Court as to
10 whether I'm going to make a motion to be relieved or what
11 I'm going to do with that.

12 THE COURT: Okay.

13 MS. GENOVESE: I have not been paid anything.

14 THE COURT: Okay. All right. So you're
15 certainly free to follow up in whatever way you deem to be
16 appropriate.

17 MS. GENOVESE: Thank you.

18 MR. DIFABIO: Thank you, Your Honor. Are we
19 excused?

20 THE COURT: So the -- just so that -- so we're
21 clear, the next court date is January 5th.

22 MS. GENOVESE: Thank you, Judge.

23 MR. WEDDLE: Thank you, Your Honor.

24 MR. DIFABIO: Thank you, Your Honor.

25 MS. RUSSELL: Thank you, Your Honor.

1 THE COURT: You're excused.

2 (4:32:31 p.m.)[PROCEEDING CONCLUDED]

3 CERTIFICATE: I, Valeri Wilson, certify the foregoing transcript
4 of proceedings held at Yonkers Family Court, NYS, Russell v. T.
5 Walsh and T. Walsh v. S. Russell, File #154703, multiple docket
6 numbers, was prepared using the required electronic equipment
7 and is a true and accurate record of the proceedings.

8 Signature: *Valeri Wilson* Date: November 23, 2021

9 Electronic signature

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